

26VECV01600 26VECV01600

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 26VECV01600 Hearing Date: August 5, 2026 Dept: T

26VECV01600 Aguilar v Christensen

[TENTATIVE] ORDER: Defendants Brandon Christensen and Christian Christensen's Motion to Strike Portions of the Complaint is GRANTED WITHOUT LEAVE TO AMEND.

Introduction

Defendants Brandon Christensen and Christian Christensen (collectively, Defendants) moved to strike Plaintiff Sandra Aguilar's (Plaintiff) request for punitive damages made in the Complaint.

Plaintiff's Opposition was due July 23, 2026, and none was filed.

Discussion

Defendants argued that the Complaint failed to plead any facts to support malice, oppression, or fraud. The Court finds the argument to be persuasive because negligence, in general, does not support a request for punitive damages, and because there are no facts to allege malice, oppression, or fraud alleged in the Complaint. The arguments are persuasive.

Without an opposition, Plaintiff failed to present any facts/arguments to show that the pleading defect can be cured.

The motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.